

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Thursday, July 2, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, July 2, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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23CV-03415	Jesus Lopez, et al. vs Raul Garcia, et al.
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Motion to be Relieved as Counsel

The unopposed motion by attorney Calvin Park and the law firm of Downtown LA Law Group, to be relieved as counsel for plaintiff Juan Espinoza is GRANTED.

The Court will sign the order lodged with the court on May 29, 2026. This order will be effective upon the filing of the proof of service of the signed order upon the client.

23CV-03524	Agustin Granados, et al. vs Jaime Vargas, et al.
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Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required. Appear to address the status of the conditional settlement for which notice was filed December 31, 2024, with an anticipated dismissal date of May 9, 2025, and show cause why the Court should not dismiss the matter, retaining jurisdiction for enforcement purposes pursuant to Code of Civil Procedure section 664.6. If there are

no appearances, the matter may be dismissed by the Court pursuant to the settlement under California Rules of Court, rule 3.1385, as more than 45 days have passed since the date the settlement agreement conditions were to be completed.

24CV-06305 Grace Tovar vs Jacob Martinez

Petition for Minor's Compromise

The petition for minor's compromise for minor Grace Tovar is DENIED, pending the filing of a prefilled order appointing guardian ad litem on form CIV-011.

The hearing is continued to July 28, 2026, at 8:15 a.m. in Courtroom 8 for status of the appointment of a guardian ad litem. Once the form CIV-011 has been filed and approved, the court will grant the petition for minor's compromise and sign the orders lodged on June 22, 2026.

25CV-01616 Zachary Katcher vs Gobi Land Management LLC

Motion to Be Relieved as Counsel

The unopposed motion by attorney Joe R. Abramson and the law firm of Law Offices of Joe R. Abramson, to be relieved as counsel for defendant Gobi Land Management, LLC, an Illinois limited liability company, is GRANTED.

The court will sign the order lodged with the court on May 11, 2026.

The order will be effective upon the filing of the proof of service of the signed order upon the client.

25CV-06400 Kalid Sanchez vs Los Banos Enterprise, et al.

Motion to Compel Preparation and Transmission of the Record on Appeal

The motion to compel preparation and transmission of the record on appeal is DENIED. The motion is premature. The superior court has transmitted a copy of Plaintiff's designation of the record to the appellate court and is within the allowable time period for preparation of the record. There is no evidence of any delay, intentional or otherwise, by the clerk's office.

Under California Rules of Court, rule 8.122, the clerk's office has 30 days to prepare the record. Yet, Plaintiff filed the instant motion a mere two days after the clerk's office prepared notice to the parties of the estimated cost to prepare the transcript, with a payment deadline of June 8, 2026, and noting Plaintiff's filed fee waiver request.

Motion to Correct Minute Order Dated 5/14/2026

Plaintiff's motion to correct the minute order dated May 14, 2026, is DENIED.

The Court has reviewed the May 14, 2026, minute order and the court record.

Plaintiff did not request oral argument in accordance with Local Rule 3.1(F). Local Rule 3.1(F) requires any party intending to appear to present oral argument following the posting of a tentative ruling to notify all parties by telephone or in person, and to notify the court by telephone, no later than 4:00 p.m. the day before the hearing. Regardless of whether Defendant was notified, the record shows that the court was not notified as required. Accordingly, Plaintiff waived oral argument.

The Court finds the typographical error on Defendant's form MC-010, wherein Defendant's counsel inadvertently stated he was attorney for "Plaintiffs," to be harmless error. In addition, although initially listed in the Register of Actions as being filed by Plaintiff, the error was found and corrected to indicate that the form was filed by Defendant. The errors were not material to any issue in this case.

Finally, there is evidentiary basis for the award of \$6,278 in attorney's fees. Here, Plaintiff conflates Defendant's motion for attorney's fees and their memorandum of costs on form MC-010. These are separate and distinct forms of compensation. In reviewing the motion for attorney's fees, the Court did not consider form MC-010.

As for the mathematical support, Defendant provided redacted invoices totaling \$5,153 and not \$3,342.50 as asserted by Plaintiff. Furthermore, in addition to the \$5,153, Defendant had initially requested an additional \$1,875 for preparation of the motion and in anticipation of preparing a reply and attendance at the hearing. The Court found this request excessive and reduced the amount by two (2) hours, which resulted in a reduced award of \$1,125. The result was a total award of attorney's fees in the amount of \$6,278.

25CV-07066

Yesenia Martinez, et al. vs State Farm General Insurance Company

Motion to Compel Discovery Responses, Deem Requests for Admission Admitted and Request for Monetary Sanctions

Defendant's motion to compel responses to Form Interrogatories, Set One, is GRANTED.

Plaintiffs have failed to provide timely responses to Form Interrogatories, Set One. Objections are waived. Plaintiffs shall serve code-compliant verified responses, without objections, within ten (10) days of the date of service of this order.

Defendant's motion to compel responses to Special Interrogatories, Set One, is GRANTED.

Plaintiffs have failed to provide timely responses to Special Interrogatories, Set One. Objections are waived. Plaintiffs shall serve code-compliant verified responses, without objections, within ten (10) days of the date of service of this order.

Defendant's motion to compel responses to Request for Production of Documents, Set One, is GRANTED.

Plaintiffs have failed to provide timely responses to Request for Production of Documents, Set One. Objections are waived. Plaintiffs shall serve code-compliant verified responses, without objections, within ten (10) days of the date of service of this order.

Defendant's motion to have Requests for Admission, Set One, deemed admitted is GRANTED.

Plaintiffs failed to provide timely responses to Requests for Admission, Set One.

The matters specified in Defendant's Requests for Admission, Set One, are deemed admitted, unless Plaintiffs serve, before the hearing, a proposed response to the requests for admission, that is in substantial compliance with Code of Civil Procedure § 2033.220.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$500 are to be paid by Plaintiffs to Defendant within thirty (30) days of this court's order.

The court will sign the order lodged with the court on June 5, 2026, modifying the proposed order to reflect the amount of monetary sanctions granted in the amount of \$500.

26CV-02676 Petition of: Elizabeth Martinez Brizuela, et al

Order to Show Cause Re: Name Change

Appearance required. Appear to address status of publication of the petition for name change.

26CV-02682 Petition of: Susan Bermejo

Order to Show Cause Re: Name Change

Appearance required. Appear to address status of publication of the petition for name change.

26CV-02774 Petition of: Donna Harris

Order to Show Cause Re: Name Change

Appearance required. Appear to address status of publication of the petition for name change.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Thursday, July 2, 2026
10:00 a.m.

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Case No.	Title / Description
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26CV-01687	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Motion to Set Aside Default and Vacate Default Judgment

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Restraining Order
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Thursday, July 2, 2026
11:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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26CV-03226	Jacob Grudem vs. Jose Garcia
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Order to Show Cause Re: Restraining Order

Appearance required.